

SUPREME COURT OF THE STATE OF NEW YORK
COUNTY OF BRONX

AYESHA ROBINSON,

Index #

Plaintiff,

SUMMONS

-against-

Plaintiff(s) designate(s)

THE CITY OF NEW YORK, THE NEW YORK CITY
POLICE DEPARTMENT, JAMES BORTOLOTTI,
RANDY ZERLING, and Police Officer Rivera Shield
Number 8562,

Bronx County as the place of trial

The basis of venue is: Situs of
accident as required by law.

Defendants.

To the above named Defendant:

You are hereby summoned to answer the complaint in this action, and to serve a copy of your answer, or, if the complaint is not served with this summons, to serve a notice of appearance on the plaintiff's attorneys within twenty days after the service of this summons, exclusive of the day of service, where service is made by delivery upon you personally within the state, or, within 30 days after completion of service where service is made in any other manner. In case of your failure to appear or answer, judgment will be taken against you by default for the relief demanded in the complaint.

Dated: Forest Hills, New York
March 25, 2023

Defendant's address:

The City of New York
1 Centre Street
New York , NY 10007

The New York City Police Department
1 Police Plaza
New York , NY 10007

Police Officer James Bortolotti
Tax ID: 960268
1 Police Plaza
New York, New York 10007

Plaintiff's attorneys:

/s David Broderick

DAVID J. BRODERICK
DAVID J. BRODERICK, LLC
70-20 Austin Street, Suite 107
Forest Hills, New York 11375
Phone: (718) 830-0700
Email: brodericklegal@gmail.com
Our File No. PI-22-0053

JAMES BORTOLOTTI

1 Police Plaza
New York , NY 10007

RANDY ZERLING

1 Police Plaza
New York , NY 10007

SUPREME COURT OF THE STATE OF NEW YORK
COUNTY OF BRONX

AYESHA ROBINSON,

Index #

Plaintiff,

COMPLAINT

-against-

THE CITY OF NEW YORK, THE NEW YORK CITY
POLICE DEPARTMENT, JAMES BORTOLOTTI,
RANDY ZERLING, and Police Officer Rivera Shield
Number 8562,

Defendants.

Plaintiff(s), Ayesha S. Robinson, by an through his/her/their attorneys, DAVID J. BRODERICK, LLC, complaining of the Defendants, respectfully allege upon information and belief:

PRELIMINARY STATEMENT

1. On or about September 18, 2022, at approximately 5:10 p.m., the New York City Police Department decided to set up a traffic enforcement operation at the intersection of 3rd Avenue and 149th Street, Bronx, New York. The NYPD is believed to have deployed a number of officers to this intersection. The officers deployed to this intersection at the above referenced time, were either not trained, inadequately trained, and/or disregarded their training in setting up its traffic enforcement operations at the above referenced intersection.

2. Just prior to the incident involving Ms. Robinson, the officers were arguing with a member of the public regarding his lack of a helmet. The officers were clearly upset and agitated. Officer Bortolotti saw an ATV operating on the road surface and did not use a whistle, his voice, and/or any other hand gesture to give notice to the ATV operator that he was going to be stopped. Rather, Officer Bortolotti broke out his baton and placed himself in a position to strike the operator even though there were pedestrians all over the place. None of the officers in the detail thought to stop and/or caution Officer Bortolotti about the risks of striking the body of

an ATV operator travelling at 25 mph (37 feet per second) with a baton. After striking the ATV operator Officer Bortolotti watched the results of his misuse of force as the ATV operator struck Ms. Ayesha Robinson.

3. Just prior to Bortolotti's assault and battery of the ATV operator, the person on the Ebike is telling a Sargent "Look at that, Look at that. Look at that shit." The Sargent did nothing to stop Bortolotti's attack on the individual. When the ATV strikes the plaintiff, officer Bortolotti does not go to the aid of Ms. Robinson, rather collapses his baton and stops to argue with the Ebiker who is calling for his arrest. Attempting to justify his action. Bortolotti still possessed the Ebiker's ID which he had taken before he struck the ATV operator.

4. It is clear, that once Ms. Robinson was on the ground, the officers were conspiring to come with a story to cover up their misdeeds. Moreover, one Sargent is so unconcerned with the damage his misconduct caused by not stopping Bortolotti that he continues to write a citation for lack of a helmet to the Ebiker. Had, the Sargent been adequately trained he would have stopped Bortolotti, but the Sargent wanted to teach the Ebiker a lesson. Bortolotti having no compassion for the injuries he just caused to happen to Ms. Robinson again argues with the Ebiker along with Rivera now stating that any Ebike that operates over 20 requires a license even though the NYC Department of Transporations websites says not until 30 mph. The officers without any regard for the health and safety of Ms. Robinson merely seek to impound the Ebike even though it did not require either a license nor registration to operate.

5. The Ebiker asked one of the officers if he knew "Who did that [to Ms. Robinson]? The officer responds "yes." When Officer Bortolotti is confronted with hitting the ATV operator with his baton he openly lied and stated, "No, I did not. I did not hit him." [Annexed hereto and made part hereof are the pictures demonstrating Bortolotti did hit the ATV operator.].

6. As a direct result of Officer Bortolotti's excessive use of force, Ms. Robinson sustained multiple fractures and have incurred medical bills which are not covered by the insurance law. Thus, section 5102(d) is not applicable.

7. In addition to the above, it is clear that both Officer Bortolotti and Sargent Randy Zerling violated the Civil Rights of Ayesha Robinson by filing a police report which did not accurately and truthfully reflect the events that transpired.

FACTS

8. At all times herein mentioned, Plaintiff (s) Ayesha S. Robinson was and still is a resident of the County of New York and State of New York.

9. That the within action is brought by the plaintiff Ayesha S. Robinson to recover damages for injuries sustained in a motor vehicle accident which occurred on September 18, 2022, resulting from the City of New York, the New York City Police Department, and Police Officer James Bortolotti's negligence, recklessness, gross negligence, gross recklessness in the excessive and misuse of force.

10. A notice of claim was timely filed and annexed hereto.

11. A 50(h) hearing was held.

12. At all times hereinafter mentioned, East 149th Street and Third Avenue were roadways in the City of New York, State of New York.

13. Upon information and belief, East 149th Street and Third Avenue intersect in Bronx, New York.

14. The City of New York is a municipal corporation duly organized under the laws of the State of New York.

15. The New York City Police Department is a mayoral agency.

16. Defendant JAMES BORTOLOTTI is a police officer employed by the City of New York through its agency known as the New York City Police Department.

17. Defendant RANDY ZERLING is a Sargent employed by the City of New York through its agency known as the New York City Police Department.

18. Defendant Police Officer Rivera Shield Number 8562 is a Sargent employed by the City of New York through its agency known as the New York City Police Department.

19. That defendants Police Officer Rivera Shield Number 8562, Bortolotti and Zerling as members of the New York City Police Department act under the color of law.

20. That on or about September 18, 2022, defendants Bortolotti, Rivera, and Zerling were acting in their official capacity as members of the New York City Police Department at approximately 5:10 p.m. at the intersection of East 149th Street and Third Avenue, Bronx, New York.

21. As the employer of defendants Bortolotti, Rivera, and Zerling, the City of New York and the New York City Police Department are responsible for hiring and training police officers to conduct their duties in a professional, lawful and constitutional manner. This responsibility includes ensuring that officers receive the necessary training and resources to perform their job duties safely and effectively.

22. The City of New York is also responsible for establishing policies and procedures that guide the conduct of police officers, such as rules regarding the use of force, the handling of evidence, and the treatment of individuals during police encounters. These policies should be designed to promote public safety, protect civil rights, and ensure accountability for officer misconduct.

23. Moreover, the City of New York has a legal duty to properly supervise and discipline its police officers. This includes conducting regular reviews of officer conduct and taking appropriate disciplinary action when officers engage in misconduct or violate department

policies. Ultimately, the City of New York is responsible for ensuring that its police officers carry out their duties in a manner that is consistent with the law, respects individual rights, and promotes public trust and confidence in law enforcement.

24. That the City of New York and the NYPD train its officers regarding the types of ebikes that are allowed on the roadways in New York City.

25. The New York City Department of Transportation specifically states that any E-bike that does not travel faster than 25 mph does not require the operator to have a license or registration. However, Officers Rivera and Bortolotti were unaware of same and/or were aware and decided to tell a falsehood to an Ebike rider they had stopped.

26. On or about September 18, 2022, prior to 5:10 p.m., the New York City Police Department decided to set up traffic enforcement operations at the intersection of 3rd Avenue and 149th Street in the Bronx.

27. That prior to conducting its traffic enforcement operations, the NYPD did not seek to control traffic with the deployment of cones, police vehicles, flares, etc to give warning to the public and those on the roadway to slow down and prepare to stop.

28. At some point in time, Officer Rivera and Bortolotti stopped an individual riding an E-bike.

29. Officer Rivera and/or Bortolotti engaged in a heated confrontation with the rider of the E-bike insisting that the biker was breaking the law and that he needed a helmet.

30. However, the biker kept insisting that he was not breaking the law as his E-bike was not capable of going over 25 mph. The officer(s) became angry and agitated.

31. Obviously angry, Officer Bortolotti removed himself from the confrontation with the Ebiker, broke out his baton, and relieved his frustration on an ATV driver by hitting him with a baton.

32. Officer Bortolotti without use of a whistle and/or an appropriate hand gesture to inform a person operating an ATV operator to stop, did strike the ATV operator on his back as he passed the officer.

33. That Officer Bortolotti intended to cause harm to the ATV operator while he was operating the ATV on the road surface.

34. That Officer Bortolotti was aware there were no less than 10 to 20 people in the cross walk where he was standing with his baton at the ready.

35. That Officer Bortolotti was fully aware that if he struck the operator that the operator could lose control of the ATV that he was operating on the road surface.

36. That Officer Bortolotti did strike the ATV operator with his baton as he passed.

37. That the force of the blow caused the operator of the ATV to become distracted from operating the ATV causing him to careen into Ayesha Robinson who was lawfully riding her Citibike across 3rd Avenue.

38. That the force of the blow caused the operator of the ATV to suffer harm and otherwise alter his operation of the ATV and careen into Ayesha Robinson who was lawfully riding her Citibike across 3rd Avenue.

39. That ATV did strike and cause injury to the Ayesha Robinson.

40. That after the ATV struck Ayesha Robinson Officer Bortolotti did not immediately seek to help her.

41. That after the ATV struck Ayesha Robinson Officer Bortolotti did not do anything to protect her body.

AS AND FOR A FIRST CAUSE OF ACTION

42. Plaintiff repeats and reiterates each and every paragraph as if more fully set forth below.

43. The NYPD had a duty to act with reasonable care and skill in performing its duties and ensuring the safety of the public.

44. The NYPD had a duty to act with reasonable care and skill in performing its duties while carrying out traffic enforcement operations.

45. The NYPD had a duty to act with reasonable care to warn the public that their operations could pose a threat to public safety.

46. That at all time, the NYPD had a duty to properly hire officers to perform their duties.

47. That at all times, the NYPD had a duty to properly train and supervise its employees in the performance of their duties.

48. That at all times, the NYPD had a duty to make sure that their officers are mentally and emotionally capable of performing their duties.

49. That the City of New York and the NYPD have a duty to train their officers in the use of batons.

50. That upon information and belief, that the NYPD Patrol Guide provides protocols for the use of batons by police officers. According to the guide, the use of force with a baton should be reasonable and necessary, and officers should avoid striking individuals in the head, neck, throat, and groin unless it is necessary to prevent serious injury or death. The use of a baton is only allowed when a subject is resisting or posing an immediate threat of physical harm to the officer.

51. That at the time JAMES BORTOLOTTI saw the ATV rider, he posed absolutely no risk of harm to him.

52. That JAMES BORTOLOTTI broke out his baton when he saw the ATV rider approaching the intersection.

53. That JAMES BORTOLOTTI placed himself in a position to strike the ATV rider.

54. That JAMES BORTOLOTTI took up a stance to strike the ATV rider.

55. That JAMES BORTOLOTTI did strike the ATV rider causing him to strike Ayesha Robinson causing her to sustain severe injuries.

56. That but for James Bortolotti striking the ATV rider with his baton Ayesha Robinson would not have been struck by ATV rider.

57. That had the City of New York and the NYPD adequately trained and supervised James Bortolotti in the use of his baton Ayesha Robinson would not have been struck by the ATV operator.

58. That there were numerous supervisors and other officers of the NYPD at the traffic enforcement operation who saw James Bortolotti break out his baton and did nothing to stop him.

59. Each one of those officers are also liable to the Ayesha Robinson for the injuries he sustained.

60. In light of the above the plaintiff has sustained injuries in an amount exceeding the jurisdictional limits of all lower courts.

61. That the aforesaid occurrence was caused wholly and solely by reason of the negligence, carelessness and recklessness of the Defendants, without any fault or negligence on the part of the Plaintiff contributing thereto.

62. That Defendants were negligent, careless and reckless in carrying out the traffic enforcement operations.

63. That by reason of the foregoing, the Plaintiff AYESHA ROBINSON sustained severe and permanent personal injuries and was otherwise damaged.

64. That after the incident took place the NYPD were obligated to fill out a police report honestly, truthfully, and accurately.

65. An officer involved in an accident is not supposed to fill out a police report where his conduct caused harm to another person.

66. Upon information and belief, the NYPD Patrol Guide, provides that a police officer who is involved in a motor vehicle accident while on duty must report the accident to his or her commanding officer.

67. If the police are involved, the officer must also report the accident to the Collision Investigation Squad. And, where the accident results in significant injury an independent accident investigator must be assigned to investigate the incident

68. In the instant case, James Bortolotti filled out the police report that involved his conduct.

69. That James Bortolotti wrote a description of the accident leaving out key details regarding his involvement in the accident.

70. That James Bortolotti and other officers at the scene conspired to falsify the police report.

71. That NYPD falsified the police report in an attempt to cover up their involvement in the accident.

72. The City of New York, JAMES BORTOLOTTI, RANDY ZERLING, and Police Officer Rivera Shield Number 8562 violated the plaintiff's civil rights by denying her due process under the law.

73. The City of New York, JAMES BORTOLOTTI, RANDY ZERLING, and Police Officer Rivera Shield Number 8562 denying Aeysha Robinson equal protection under the law.

74. The City of New York, the NYPD, JAMES BORTOLOTTI, RANDY ZERLING, and Police Officer Rivera Shield Number 8562 conspired to falsify the police report so as to deny Aeysha Robinson a fair trial.

75. That the NYPD falsified the police report so as to deny Ayesha Robinson her right to seek compensation from the City of New York for the injuries she sustained.

76. The Plaintiff has sustained serious injuries as defined by §5102(d) of the Insurance Law of the State of New York.

77. The Plaintiff has sustained serious injuries and/or economic loss greater than basic economic loss as defined by §5104 of the Insurance Law of the State of New York.

78. That this action falls within one or more of the exceptions set forth in CPLR §1602.

79. That by reason of the foregoing, Plaintiff Ayesha S. Robinson has been damaged in an amount the exceeds the jurisdictional limits of all lower courts.

Dated: Forest Hills, New York
March 25, 2023

Yours, etc.

s/ David Broderick

DAVID J. BRODERICK
DAVID J. BRODERICK, LLC
Attorneys for the plaintiff
Ayesha S. Robinson
70-20 Austin Street, Suite 107
Forest Hills, New York 11375
(718)830-0700

ATTORNEY'S VERIFICATION BY AFFIRMATION

DAVID J. BRODERICK, an attorney duly admitted to practice before the Courts of the State of New York, affirms the following to be true under the penalties of perjury that I am associated with the Firm of DAVID J. BRODERICK, LLC, attorneys of record for defendants, in the action within. Said verification is permissible as both defendants are not in the County of my office. I have read the annexed complaint and know the contents thereof, and the same are true to my knowledge, except those matters therein which are stated to be alleged upon information and belief, and as to those matters I believe them to be true. My belief, as to those matters therein not stated upon knowledge, is based upon facts, records, and other pertinent information contained in my files.

I make the foregoing affirmation because defendant is not presently in the county wherein I maintain my offices.

DATED: Forest Hills, New York
March 25, 2023

/s David Broderick

DAVID J. BRODERICK



**NYPD almost kill women
over ebike!!**



TikTok

@dancerkid1010



**NYPD almost kill women
over ebike!!**



TikTok

@dancerkid1010



**NYPD almost kill women
over ebike!!**



TikTok

@dancerkid1010

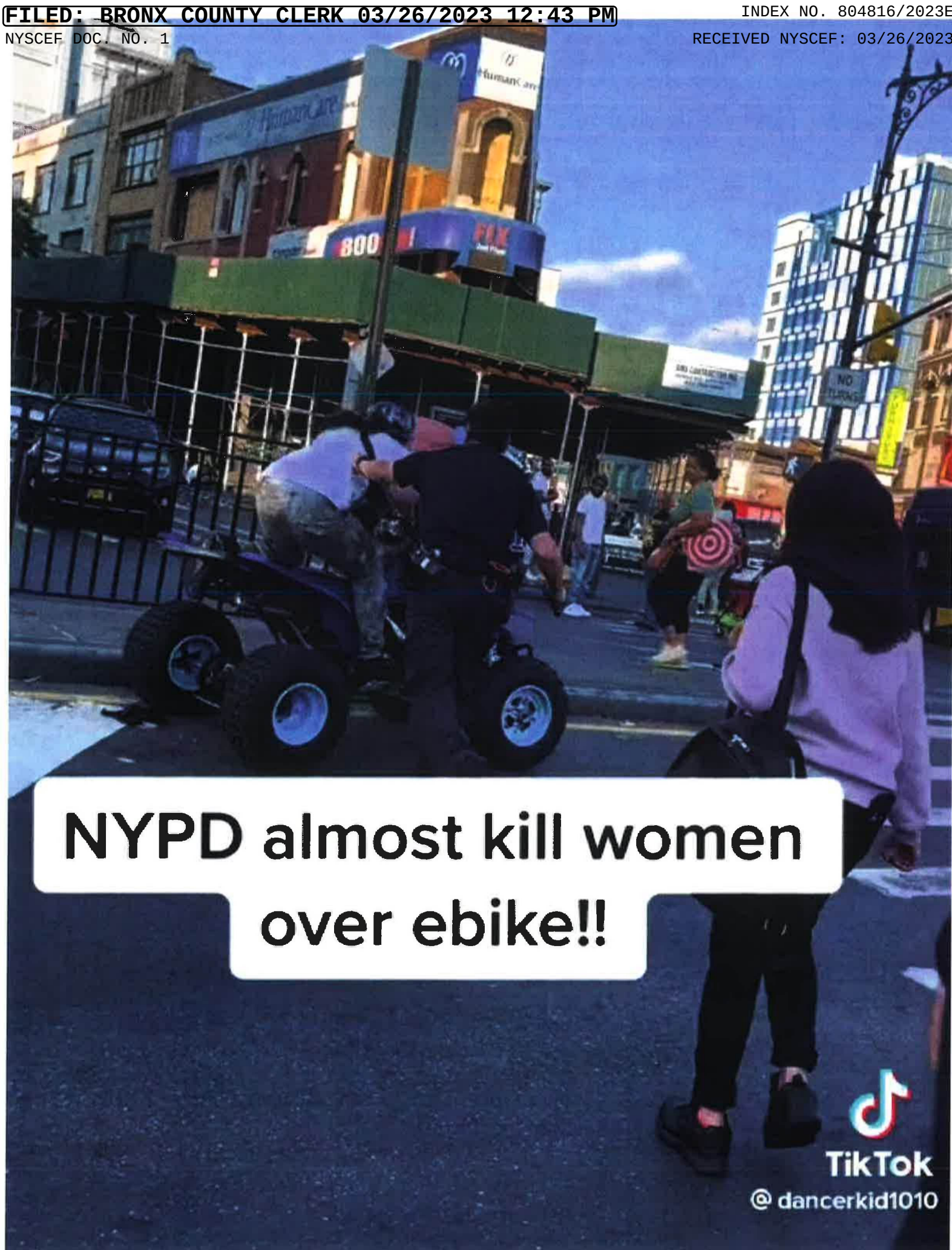


**NYPD almost kill women
over ebike!!**



TikTok

@dancerkid1010



**NYPD almost kill women
over ebike!!**



TikTok

@dancerkid1010



**NYPD almost kill women
over ebike!!**



TikTok

@dancerkid1010



**NYPD almost kill women
over ebike!!**



TikTok

@dancerkid1010

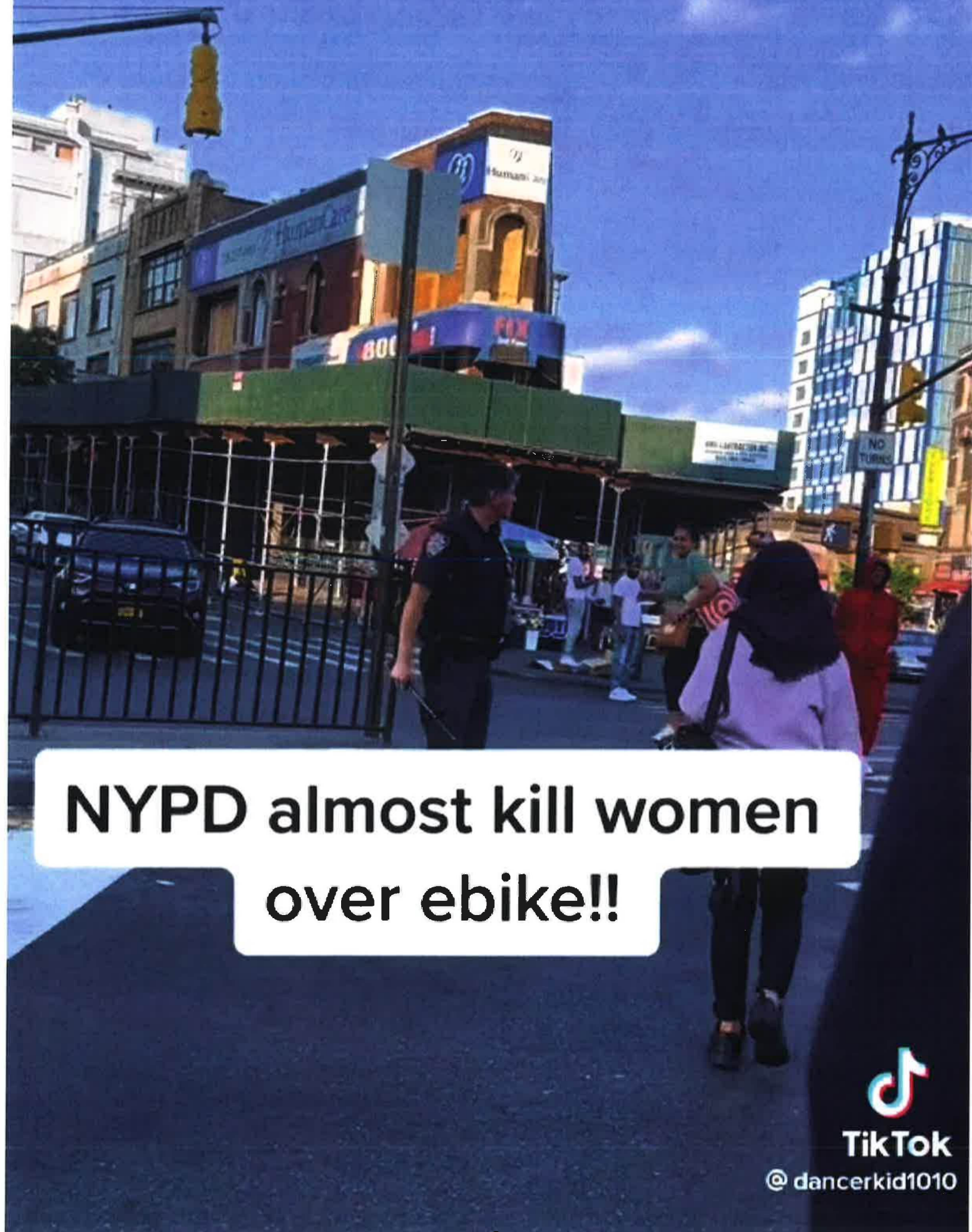


**NYPD almost kill women
over ebike!!**



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@dancerkid1010



**NYPD almost kill women
over ebike!!**



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**NYPD almost kill women
over ebike!!**



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@dancerkid1010



**NYPD almost kill women
over ebike!!**



TikTok

@dancerkid1010

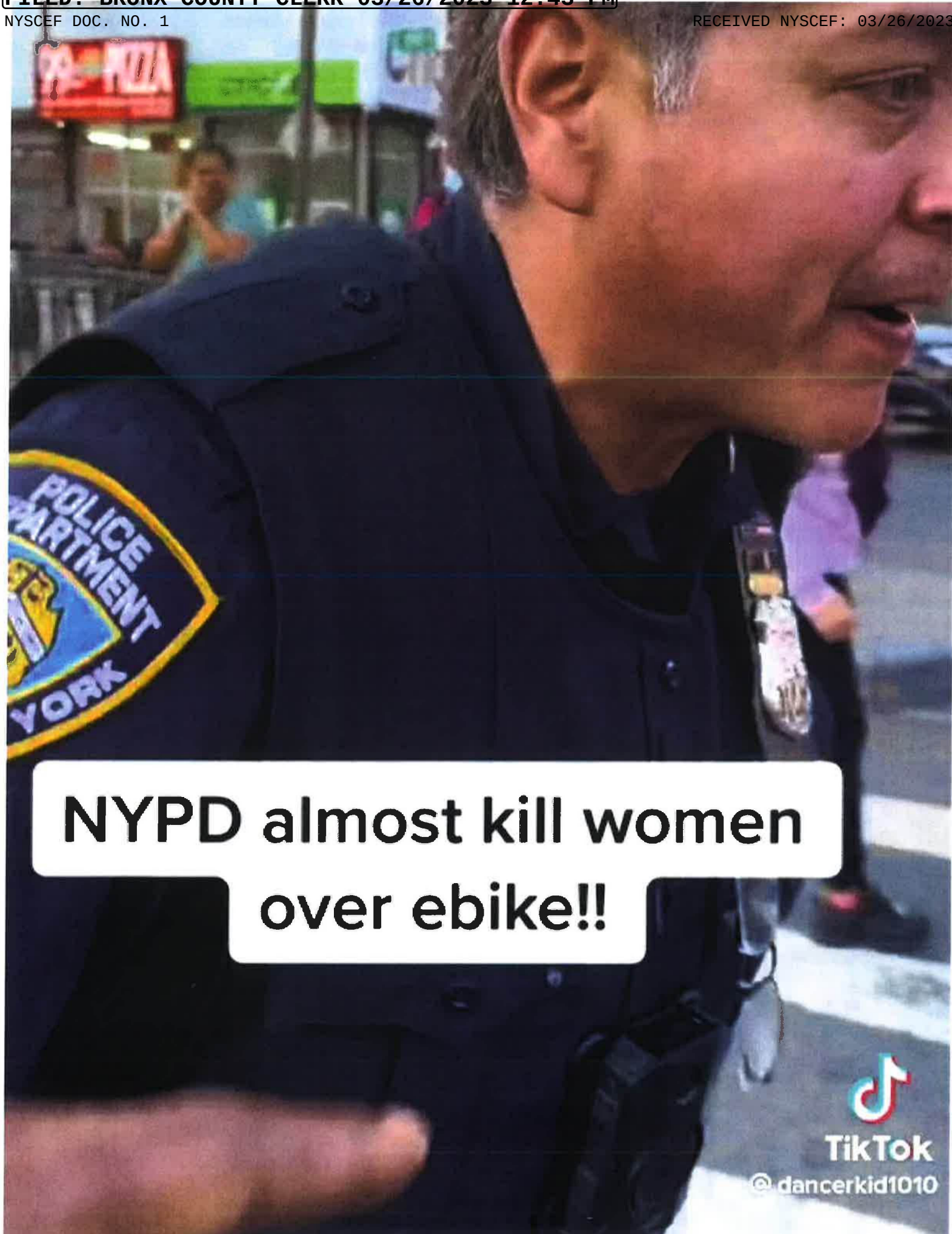


**NYPD almost kill women
over ebike!!**



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**NYPD almost kill women
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Page 1 of 4 Pages

New York State Department of Motor Vehicles

POLICE ACCIDENT REPORT (NYC)

MV-104AN (7/11)

 Precinct
040
 Accident No.
MV-2022-040-001099

 Complaint
 Number **2022-40-010286**
☒ **AMENDED REPORT**

1		Accident Date Month 9 Day 18 Year 2022		Day of Week SUNDAY		Military Time 17:10		No. of Vehicles 1		No. Injured 1		No. Killed 0		Not Investigated at Scene ☐		Left Scene ☒		Police Photos ☐ Yes ☒ No		19 17	
VEHICLE 1																				20 19	
2		VEHICLE 1 - Driver License ID Number Driver Name - exactly as printed on license Address (Include Number & Street) City or Town State Zip Code								VEHICLE 2 ☐ VEHICLE 2 ☒ BICYCLIST ☐ PEDESTRIAN ☐ OTHER PEDESTRIAN Driver Name - exactly as printed on license Address (Include Number & Street) City or Town State Zip Code								21 -			
Date of Birth Month 6 Day 20 Year 1978 Sex F Unlicensed ☒ No. of Occupants 1 Public Property Damaged ☐																				22 -	
Name - exactly as printed on registration Date of Birth Month 6 Day 20 Year 1978 Sex F Unlicensed ☒ No. of Occupants 1 Public Property Damaged ☐																				23 3	
Address (Include Number & Street) City or Town State Zip Code																				24 5	
Plate Number State of Reg. Vehicle Year & Make Vehicle Type Ins. Code																				25 1	
Ticket/Arrest Number(s) Violation Section(s)																				26 1	
Check if involved vehicle is: ☐ more than 95 inches wide; ☐ more than 34 feet long; ☐ operated with an overweight permit; ☐ operated with an overdimension permit.																				27 1	
Check if involved vehicle is: ☐ more than 95 inches wide; ☐ more than 34 feet long; ☐ operated with an overweight permit; ☐ operated with an overdimension permit.																				28 3	
Circle the diagram below that describes the accident, or draw your own diagram in space #9 Number the vehicles.																				29 -	
Rear End Left Turn Right Angle Right Turn Head On 1. 2. 3. 4. 5. 6. 7. 8. 9.																				30 -	
Sideswipe (same direction) Left Turn Right Turn Sideswipe (opposite)																				31 P	
ACCIDENT DIAGRAM DIAGRAM ATTACHED ON SUBSEQUENT PAGE 4 RIGHT ANGLE																				32 3	
Cost of repairs to any one vehicle will be more than \$1000. ☐ Unknown/Unable to Determine ☐ Yes ☒ No																				33 -	
Reference Marker Coordinates (if available) Latitude/Northing: 40.816067 Longitude/Easting: -73.91765																				34 -	
Place Where Accident Occurred: ☒ BRONX ☐ KINGS ☐ NEW YORK ☐ QUEENS ☐ RICHMOND Road on which accident occurred: EAST 149 STREET (Route Number or Street Name) at 1) Intersecting street 3 AVENUE (Route Number or Street Name) or 2) ☐ N ☐ S ☐ E ☐ W of Feet Miles (Milepost, Nearest Intersecting Route Number or Street Name)																				35 -	
Accident Description/Officer's Notes AT TPO, V2 (BICYCLIST ON CITIBIKE) WAS TRAVELING SOUTH ON 3 AVENUE THROUGH THE INTERSECTION OF EAST 149 STREET WITH A STEADY GREEN SIGNAL WHEN V1 (ATV) DISOBEYED A STEADY RED SIGNAL EASTBOUND ON EAST 149 STREET AT THE INTERSECTION OF 3 AVENUE RESULTING IN THE COLLISION WITH V2. V1 LEFT THE SCENE OF ACCIDENT WITHOUT EXCHANGING INFORMATION. V2 BICYCLIST WAS TRANSPORTED TO LINCOLN HOSPITAL FOR MEDICAL																				36 -	
ALL INVOLVED 8 9 10 11 12 13 14 15 16 17 BY TO 18 Names of all involved Date of Death Only 2B 1 1 1 44 F 11 12 6 - 7010 ROBINSON, AYESHA, S																				37 -	
Officer's Rank and Signature POM Print Name in Full JAMES BORTOLOTTI Tax ID No. 960268 NCIC No. 03030 Precinct 040 Post/Section Reviewing Officer SGT RANDY ZERLING Date/Time Reviewed 09/19/2022 00:16																				38 -	

PERSONS KILLED OR INJURED IN ACCIDENT (Letter designation of persons killed or injured must correspond with letter designation on front).

A Last Name ROBINSON			First AYESHA			M.I. S			Last Name			First			M.I.								
Address 258 WEST 117 STREET APT 25W NEW YORK NY 10026									Address														
Date of Birth Month 6			Day 20			Year 1978			Telephone (Area Code) ()			Date of Birth Month ()			Day ()			Year ()			Telephone (Area Code) ()		
Last Name			First			M.I.			Last Name			First			M.I.								
Address									Address														
Date of Birth Month ()			Day ()			Year ()			Telephone (Area Code) ()			Date of Birth Month ()			Day ()			Year ()			Telephone (Area Code) ()		
Last Name			First			M.I.			Highway Dist. at Scene? ☐ Yes ☒ No Name:														
Address									Shield No.														
Date of Birth Month ()			Day ()			Year ()			Telephone (Area Code) ()														

ENTER INSURANCE POLICY NUMBER FROM INSURANCE IDENTIFICATION CARD, EXPIRATION DATE (IN ALL CASES), AND VIN.

Vehicle No. 1 _____ Vehicle No. 2 _____
 Expiration Date _____ Expiration Date _____
 VIN _____ VIN _____

WITNESS (Attach separate sheet, if necessary)

Name	Address	Phone

DUPLICATE COPY REQUIRED FOR:

☐ Dept. of Motor Vehicles (if anyone is killed/injured)
 ☐ Motor Transport Division (P.D. vehicle involved)
 ☐ NYC Taxi & Limousine Comm. (if a Licensed taxi or limousine involved)
 ☐ Other City Agency (Specify) _____
☐ Office of Comptroller (if a City vehicle involved)
☐ Personnel Safety Unit (if a P.D. vehicle involved)
☐ Highway Unit _____

NOTIFICATIONS: (Enter name, address, and relationship of friend or relative notified. If aided person is unidentified, list Missing Person Squad member who was notified. In either case, give date and time of notification.)

PROPERTY DAMAGED (other than vehicles)	OWNER OF PROPERTY (include city agency, where applicable)

IF NYPD VEHICLE IS INVOLVED:

Police Vehicle	Operator's First Name	Last Name	Rank	Shield No.	Tax ID. No.	Command
Make of Vehicle	Year	Type of Vehicle	Plate No.	Dept. Vehicle No.	Assigned To What Command	
Equipment in Use At Time of Accident						
☐ Siren	☐ Horn	☐ Turret Light	☐ 4-Way Flasher	☐ High-Level Warning Lights	☐ Traffic Cones	☐ Headlights

ACTIONS OF POLICE VEHICLE

☐ Responding to Code Signal
 ☐ Complying with Station House Directive
☐ Pursuing Violator
☐ Routine Patrol
☐ Other (Describe) _____

Page 3 of 4 Pages

New York State Department of Motor Vehicles

POLICE ACCIDENT REPORT (NYC)

MV-104AN (7/11)

Precinct
040
Accident No.
MV-2022-040-001099Complaint
Number 2022-40-010286☒ AMENDED REPORT

1		Accident Date Month 9 Day 18 Year 2022		Day of Week SUNDAY		Military Time 17:10		No. of Vehicles 1		No. Injured 1		No. Killed 0		Not Investigated at Scene ☐ Reconstructed ☐		Left Scene ☐		Police Photos ☐ Yes ☒ No		19 -		
2		VEHICLE										☐ VEHICLE ☐ BICYCLIST ☐ PEDESTRIAN ☐ OTHER PEDESTRIAN										20 -
2		VEHICLE - Driver License ID Number										VEHICLE - Driver License ID Number										21 -
2		Driver Name - exactly as printed on license										Driver Name - exactly as printed on license										22 -
2		Address (Include Number & Street)										Address (Include Number & Street)										23 -
2		City or Town										City or Town										24 -
3		Date of Birth Month Day Year										Date of Birth Month Day Year										25 -
3		Sex										Sex										26 -
3		Unlicensed										Unlicensed										27 1
3		No. of Occupants										No. of Occupants										28 3
3		Public Property Damaged										Public Property Damaged										29 -
3		Name - exactly as printed on registration										Name - exactly as printed on registration										30 -
3		Address (Include Number & Street)										Address (Include Number & Street)										31 -
3		City or Town										City or Town										32 -
3		Plate Number										Plate Number										33 -
3		State of Reg										State of Reg										34 -
3		Vehicle Year & Make										Vehicle Year & Make										35 -
3		Vehicle Type										Vehicle Type										36 -
3		Ins. Code										Ins. Code										37 -
3		Ticket/Arrest Number(s)										Ticket/Arrest Number(s)										38 -
3		Violation Section(s)										Violation Section(s)										39 -
4		Check if involved vehicle is: ☐ more than 95 inches wide; ☐ more than 34 feet long; ☐ operated with an overweight permit; ☐ operated with an overdimension permit.										Check if involved vehicle is: ☐ more than 95 inches wide; ☐ more than 34 feet long; ☐ operated with an overweight permit; ☐ operated with an overdimension permit.										40 -
4		VEHICLE 1 DAMAGE CODES										VEHICLE 2 DAMAGE CODES										41 -
4		Box 1 - Point of Impact										Box 1 - Point of Impact										42 -
4		Box 2 - Most Damage										Box 2 - Most Damage										43 -
4		Enter up to three more Damage Codes										Enter up to three more Damage Codes										44 -
4		Vehicle By Towed To										Vehicle By Towed To										45 -
4		VEHICLE DAMAGE CODING: 1-13. SEE DIAGRAM ON RIGHT. 14. UNDERCARRIAGE 17. DEMOLISHED 15. TRAILER 18. NO DAMAGE 16. OVERTURNED 19. OTHER										VEHICLE DAMAGE CODING: 1-13. SEE DIAGRAM ON RIGHT. 14. UNDERCARRIAGE 17. DEMOLISHED 15. TRAILER 18. NO DAMAGE 16. OVERTURNED 19. OTHER										46 -
4		Reference Marker										Coordinates (if available)										47 -
4		Latitude/Northing: 40.816067										Longitude/Easting: -73.91765										48 -
4		Place Where Accident Occurred: ☒ BRONX ☐ KINGS ☐ NEW YORK ☐ QUEENS ☐ RICHMOND										Road on which accident occurred EAST 149 STREET										49 -
4		at 1) intersecting street 3 AVENUE										(Route Number or Street Name)										50 -
4		or 2) ☐ N ☐ S ☐ E ☐ W of										(Milepost, Nearest Intersecting Route Number or Street Name)										51 -
4		Accident Description/Officer's Notes TREATMENT. ***** AMEND DETAILS ***** CORRECTED DATE/TIME																				52 -
4		ALL INVOLVED										Names of all involved										53 -
4		Date of Death Only																				54 -
4		Officer's Rank and Signature POM										Tax ID No. 960268										55 -
4		Print Name in Full JAMES BORTOLOTTI										NCIC No. 03030										56 -
4		Precinct 040										Post/Sector										57 -
4		Reviewing Officer SGT RANDY ZERLING										Date/Time Reviewed 09/19/2022 00:16										58 -

PERSONS KILLED OR INJURED IN ACCIDENT (Letter designation of persons killed or injured must correspond with letter designation on front).

Last Name			First			M.I.			Last Name			First			M.I.								
Address									Address														
Date of Birth Month			Day			Year			Telephone (Area Code) ()			Date of Birth Month			Day			Year			Telephone (Area Code) ()		
Last Name			First			M.I.			Last Name			First			M.I.								
Address									Address														
Date of Birth Month			Day			Year			Telephone (Area Code) ()			Date of Birth Month			Day			Year			Telephone (Area Code) ()		
Last Name			First			M.I.			Highway Dist. at Scene? ☐ Yes ☐ No Name:														
Address																							
Date of Birth Month			Day			Year			Telephone (Area Code) ()			Shield No.											

ENTER INSURANCE POLICY NUMBER FROM INSURANCE IDENTIFICATION CARD, EXPIRATION DATE (IN ALL CASES), AND VIN.

Vehicle No. _____ Vehicle No. _____
 Expiration Date _____ Expiration Date _____
 VIN _____ VIN _____

WITNESS (Attach separate sheet, if necessary)

Name	Address	Phone

DUPLICATE COPY REQUIRED FOR:

☐ Dept. of Motor Vehicles (if anyone is killed/injured)
 ☐ Motor Transport Division (P.D. vehicle involved)
 ☐ NYC Taxi & Limousine Comm. (if a Licensed taxi or limousine involved)
 ☐ Other City Agency (Specify) _____
☐ Office of Comptroller (if a City vehicle involved)
☐ Personnel Safety Unit (if a P.D. vehicle involved)
☐ Highway Unit _____

NOTIFICATIONS: (Enter name, address, and relationship of friend or relative notified. If aided person is unidentified, list Missing Person Squad member who was notified. In either case, give date and time of notification.)

PROPERTY DAMAGED (other than vehicles)	OWNER OF PROPERTY (include city agency, where applicable)

IF NYPD VEHICLE IS INVOLVED:

Police Vehicle	Operator's First Name	Last Name	Rank	Shield No.	Tax ID. No.	Command
Make of Vehicle	Year	Type of Vehicle	Plate No.	Dept. Vehicle No.	Assigned To What Command	
Equipment in Use At Time of Accident						
☐ Siren	☐ Horn	☐ Turret Light	☐ 4-Way Flasher	☐ High-Level Warning Lights	☐ Traffic Cones	☐ Headlights

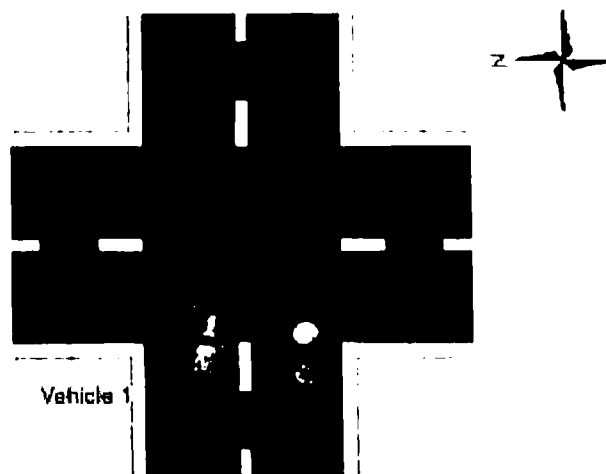
ACTIONS OF POLICE VEHICLE

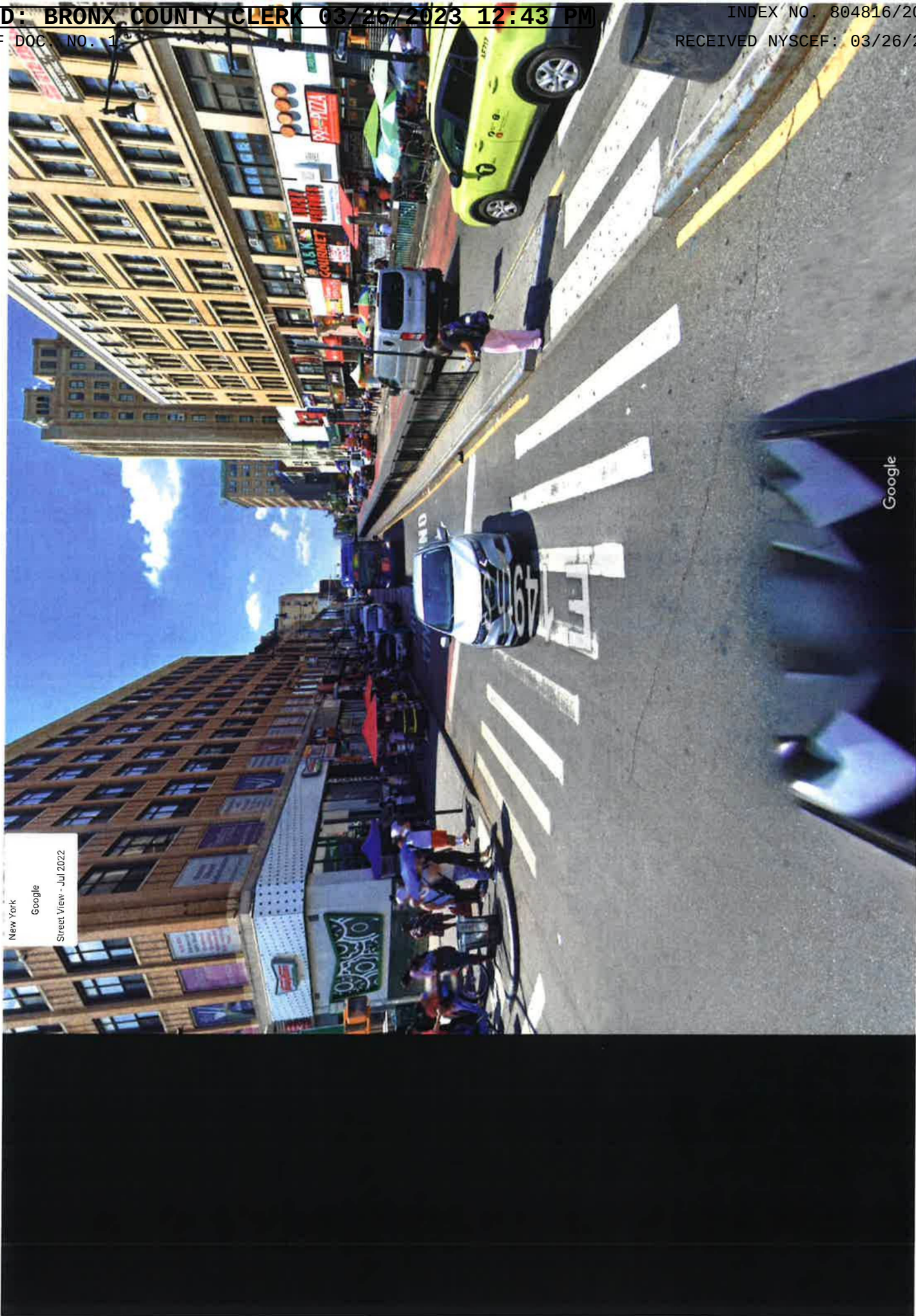
☐ Responding to Code Signal
 ☐ Complying with Station House Directive
☐ Pursuing Violator
☐ Routine Patrol
☐ Other (Describe) _____

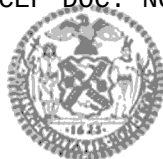
Right Angle : MV-2022-040-001099

Reporting Officer : POM JAMES BORTOLOTTI

Reviewing Officer : SGT RANDY ZERLING Reviewed Date : 09/19/2022 00:16







New York City Comptroller
Brad Lander

RECEIVED NYSCEF: 03/26/2023
Office of the New York City Comptroller
1 Centre Street
New York, NY 10007

Form Version: NYC-COMPT-BLA-PI1-E

Personal Injury Claim Form

Electronically filed claims must be filed within 90 days of the occurrence using the Office of the NYC Comptroller's website. If the claim is not resolved within one (1) year and 90 days of the occurrence, you must start a separate legal action in a court of law before the expiration of this time period to preserve your rights.

I am filing: ☐ On behalf of myself.

☒ On behalf of someone else. If on someone else's behalf, please provide the following information.

Last Name: BRODERICK

First Name: DAVID

Relationship to the claimant: ATTORNEY

Claimant Information

*Last Name: ROBINSON

*First Name: AYESHA

*Address: 258 WEST 117TH STREET

Address 2: APT 25W

*City: NEW YORK

*State: NEW YORK

*Zip Code: 10026

*Country: USA

Date of Birth: *Format: MM/DD/YYYY*

Soc. Sec. #

HICN:
(Medicare #)

Date of Death: *Format: MM/DD/YYYY*

Phone:

*Email Address:

*Retype Email Address:

Occupation:

City Employee? ☐ Yes ☐ No ☐ NA

Gender ☐ Male ☐ Female ☐ Other

☒ Attorney is filing.

Attorney Information (If claimant is represented by attorney)

+Firm or Last Name: DAVID J BRODERICK LLC

+Firm or First Name: SAME AS ABOVE

+Address: 70-20 AUSTIN STREET

Address 2: SUITE 107

+City: FOREST HILLS

+State: NEW YORK

+Zip Code: 11375

Tax ID:

Phone #:

+Email Address: BRODERICKLEGAL@GMAIL.COM

+Retype Email Address: BRODERICKLEGAL@GMAIL.COM

The time and place where the claim arose

*Date of Incident: 09/18/2022 *Format: MM/DD/YYYY*

Time of Incident: 5:10 PM *Format: HH:MM AM/PM*

*Location of Incident: INTERSECTION OF EAST 149TH STREET AND 3RD AVENUE, BRONX, NEW YORK

Address:

Address 2:

City: NEW YORK

*State: NEW YORK

Borough: MANHATTAN (NEW YORK)

* Denotes required fields.

+ Denotes field that is required if attorney is filing.

A Claimant OR an Attorney Email Address is required.

New York City Comptroller
Brad Lander***Manner in which
claim arose:**

ON OR ABOUT SEPTEMBER 18, 2022, PRIOR TO 5:10 P.M., THE NEW YORK CITY POLICE DEPARTMENT DECIDED TO SETUP A TRAFFIC ENFORCEMENT BARRIER AT THE INTERSECTION OF 3RD AVENUE AND 149TH STREET TO ALLEGEDLY ENFORCE RULES REGARDING EBIKES. NUMEROUS OFFICERS WERE DEPLOYED IN THE INTERSECTION CREATING A HIGHLY DANGEROUS SITUATION. IT IS AND WAS CLEAR THAT THE OFFICERS WERE NOT SUFFICIENTLY TRAINED TO RUN THE TYPE OF OPERATION THAT THEY WERE ATTEMPTING TO EMPLOY. WHILE DEPLOYED IT WAS ABUNDANTLY CLEAR THAT THE OFFICERS WERE NOT TRAINED AS TO WHICH ELECTRONIC BIKES REQUIRE LICENSE PLATES AND INSURANCE AND WHICH EBIKES DID NOT. THE OFFICERS REFUSED TO RECOGNIZE THAT BIKES THAT DO NOT TRAVEL GREATER THAN 30 MPH ARE NOT REQUIRED TO HAVE EITHER A LICENSE TO OPERATE, REGISTRATION, AND INSURANCE. OFFICERS WERE LYING TO THE PUBLIC STATING THAT BIKES GOING GREATER THAN 20 MPH REQUIRE LICENSE, REGISTRATION, AND INSURANCE SHOWS THEIR INCOMPETENCE. ONE SUCH OFFICER WAS OFFICER RIVERA SHIELD 8562 WHO KEPT INSISTING THAT HE WAS A TRAFFIC SPECIALIST AND KNEW THE LAW. OFFICER BORTOLOTTI - SHIELD 10462 - AFTER HARASSING ONE EBIKER LEAVES HIS ALTERCATION WITH ONE PERSON BECAUSE HE SEES A FOUR WHEELER ON THE ROAD. OFFICER BORTOLOTTI WITHOUT REGARD FOR THE SAFETY OF PEDESTRIANS AND BICYCLISTS IN THE AREA WIELDS HIS BATON AND STRIKES THE OPERATOR OF THE 4 WHEELER CAUSING THE FOUR WHEELER TO DEVIATE FROM HIS STRAIGHT TRAJECTORY AND CAREEN INTO THE CLAIMANT WHO WAS RIDING A CITIBIKE IN ACCORDANCE WITH ALL THE LAWS OF THE STATE OF NEW YORK.

OFFICER BORTOLOTTI'S ACTIONS AS WELL AS THOSE OF THE OTHER NYPD OFFICERS ARE DIRECTLY RESPONSIBLE FOR THE ATV TO STRIKE THE CLAIMANT. THERE IS NO DOUBT THAT BORTOLOTTI WAS ARROGANT, UPSET, ANGRY, AND FRUSTRATED AND DECIDED TO TAKE OUT THAT FRUSTRATION, WHILE IN THE COURSE OF HIS EMPLOYMENT AND UNDER THE DIRECTION AND SUPERVISION OF HIS SUPERIOR, TO RUSH FROM ARGUING WITH ONE PERSON WHO WAS PLEADING FOR HIS CREDENTIALS TO STRIKE ANOTHER PERSON OPERATING AN ATV WITH HIS BATON.

AS CAN BE SEEN FROM THE ANNEXED PICTURES, THERE ARE PEDESTRIANS IN THE CROSSWALKS ON 149TH STREET. OFFICER BORTOLOTTI IS STANDING ON EAST 149TH STREET WITH THE BATON AT THE READY. THE ATV COMES TOWARDS HIM AND OFFICER BORTOLOTTI STRIKES THE UNKNOWN ATV RIDER ON HIS BACK WITH HIS BATON CAUSING THE RIDER TO LOSE CONTROL AND STRIKE THE CLAIMANT WHO WAS CROSSING 149TH STREET WITH THE LIGHT AND CAN BE SEEN ON THE GROUND IN THE PICTURES. AFTER CONTACT WITH THE ATV.

OFFICER BORTOLOTTI WAS NEGLIGENT AND RECKLESS IN HIS USE OF A BATON ON AN ATV OPERATOR WHILE THE VEHICLE WAS BEING DRIVEN AT A RATE OF SPEED. THE NYPD WAS NEGLIGENT IN SETTING UP ITS ALLEGED ENFORCEMENT ZONE. THE NYPD FAILED TO USED THEIR VEHICLES AND OTHER DEVICES TO CONTROL THE TRAFFIC SO AS TO PERFORM ITS OPERATIONS.

AS A RESULT OF THE NYPD'S AND OFFICER BORTOLOTTI'S ACTIONS THE CLAIMANT WAS SEVERELY INJURED.

*** Denotes required field.**

New York City Comptroller
Brad Lander

**The items of
damage or injuries
claimed are
(include dollar
amounts):**

AS A RESULT OF THE COLLISION CAUSED BY THE NEGLIGENCE OF THE NYPD IN ITS OPERATIONS OF TRAFFIC ENFORCEMENT STOP CAUSED THE CLAIMANT TO SUFFER FRACTURES TO HER CERVICAL SPINE, LUMBAR FRACTURE, HERNIATED AND BULGING DISCS IN THE CERVICAL AND LUMBAR SPINE, INJURIES TO HER HEAD, NECK, BACK, SHOULDERS, ARMS, LEGS, KNEES, ANKLES, WRISTS, ETC. POSSIBLE NEED FOR CERVICAL AND LUMBAR SPINAL SURGERY.

FRACTURED L2-L3 VERTEBRAES

ALL OF SAID INJURIES EXTENDED TO THE SURROUNDING NERVES, TENDONS, TISSUES, LIGAMENTS, MUSCULATURE, AND BONY STRUCTURE, INCLUDING BUT NOT LIMITED TO THE PERIOSTEUM, CORTEX AND BLOOD CIRCULATORY SYSTEM. AS A RESULT OF THE TRAUMA, PLAINTIFF SUFFERS FROM PAIN, TENDERNESS, RESTRICTED AND LIMITED MOTION, RECURRENT PERSISTENT LIMPING, ENLARGEMENT, SWELLING, AND HE WILL DEVELOP TRAUMATIC ARTHRITIS, ALL OF WHICH HAVE SUSTAINABLY PREVENTED HIM FROM ENJOYING THE NORMAL FRUITS OF SOCIAL ACTIVITIES. PLAINTIFF SUFFERS FROM MENTAL AND EMOTIONAL DISTRESS AS A RESULT OF THE INJURIES AND ACCIDENT. ALL OF THE INJURIES AND CONDITIONS CAUSED AND/OR CONTRIBUTED TO PLAINTIFF LIVING A LESSER QUALITY OF LIFE, INCLUDING LOSS OF ENJOYMENT OF LIFE THAN HE WOULD OTHERWISE HAVE EXPERIENCED, BUT FOR THE INJURIES AND CONDITIONS ALLEGED HEREIN. PLAINTIFF SUFFERED, STILL SUFFERS, AND WILL CONTINUE TO SUFFER PAIN, DISCOMFORT AND LIMITED MOVEMENT OF THE INJURED PORTIONS OF HIS BODY, INCLUDING THE ADJACENT AND SURROUNDING MUSCLES, TENDON, NERVES, JOINTS, FASCIA, VESSELS AND SOFT TISSUES. ALL OF THE ABOVE INJURIES AND THEIR EFFECTS ARE PERMANENT IN NATURE.

THE CLAIMANT WAS TAKEN TO LINCOLN HOSPITAL.

SEE ATTACHED SHEETS. CLAIMANT SEEKS \$10,000,000.00 IN DAMAGES



New York City Comptroller
Brad Lander

RECEIVED NYSCEF: 03/26/2023
Office of the New York City Comptroller
1 Centre Street
New York, NY 10007

Medical Information

1st Treatment Date: *Format: MM/DD/YYYY*
Hospital/Name:
Address:
Address 2:
City:
State:
Zip Code:
Date Treated in
Emergency Room: *Format: MM/DD/YYYY*
Was claimant taken to hospital by ☐ Yes ☐ No ☐ NA
an ambulance?

Employment Information (If claiming lost wages)

Employer's Name:
Address:
Address 2:
City:
State:
Zip Code:
Work Days Lost:
Amount Earned
Weekly:

Treating Physician Information

Last Name:
First Name:
Address:
Address 2:
City:
State:
Zip Code:

Witness 1 Information

Last Name:
First Name:
Address:
Address 2:
City:
State:
Zip Code: Phone:

Witness 2 Information

Last Name:
First Name:
Address:
Address 2:
City:
State:
Zip Code: Phone:

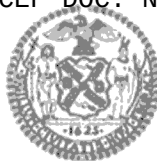
Witness 3 Information

Last Name:
First Name:
Address:
Address 2:
City:
State:
Zip Code: Phone:

Witness 4 Information

Last Name:
First Name:
Address:
Address 2:
City:
State:
Zip Code: Phone:

NYSCEF DOC. NO. 1



New York City Comptroller
Brad Lander

RECEIVED NYSCEF: 03/26/2023
Office of the New York City Comptroller
1 Centre Street
New York, NY 10007

Complete if claim involves a NYC vehicle

Owner of vehicle claimant was traveling in

Last Name:

First Name:

Address

Address 2:

City:

State:

Zip Code:

Insurance Information

Insurance Company
Name:

Address

Address 2:

City:

State:

Zip Code:

Policy #:

Phone #:

Description of claimant:

- ☐ Driver ☐ Passenger
☐ Pedestrian ☐ Bicyclist
☐ Motorcyclist ☐ Other

Non-City vehicle driver

Last Name:

First Name:

Address

Address 2:

City:

State:

Zip Code:

Non-City vehicle information

Make, Model, Year
of Vehicle:

Plate #:

VIN #:

City vehicle information

Plate #:

City Driver Last
Name:

City Driver First
Name:

Total Amount
Claimed:

\$10,000,000.00

Format: Do not include "\$" or ",".

The **Total Amount Claimed** can only be entered once the following
required fields are entered:

Claimant Last Name

Claimant First Name

Claimant Address, City, State, Zip Code, and Country

Claimant Email or Attorney Email

Date of Incident

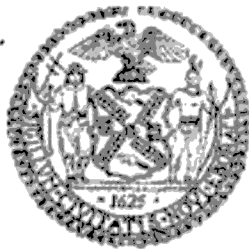
Location of Incident (including State)

Manner in which claim arose

If attorney is filing, the following fields are also required:

Attorney Last Name, First Name, Address, City, State, Zip Code, Email

I certify that all information contained in this notice is true and correct to the best of my knowledge and belief. I understand that the willful
making of any false statement of material fact herein will subject me to criminal penalties and civil liabilities.



**THE CITY OF NEW YORK
OFFICE OF THE COMPTROLLER
CLAIMS AND ADJUDICATIONS
1 CENTRE STREET ROOM 1200
NEW YORK, N.Y. 10007-2341**

**Brad Lander
COMPTROLLER**

015 - 151

Date: 11/4/2022
Claim Number: 2022PI031330
RE: Acknowledgment of Claim
Your Claim/Policy#:

AYESHA ROBINSON c/o DAVID J BRODERICK
70-20 AUSTIN STREET
FOREST HILLS NY 11375
BRODERICKLEGAL@GMAIL.COM

Dear Claimant:

We acknowledge receipt of your claim, which has been assigned the claim number shown above. Please refer to this claim number in any correspondence or inquiry you may have with our office.

We will do our best to investigate and, if possible, settle your claim. However, if we are unable to resolve your claim, **any lawsuit against the City must be started within one year and ninety days from the date of the occurrence.**

If you have any questions regarding your claim, you may contact us at 212-669-4729 for claims involving personal injury.

If you need to communicate in a language other than English, please let us know, and we will make translation services available to you.

Sincerely,

Bureau of Law & Adjustment